

**BEFORE THE
FEDERAL MARITIME COMMISSION**

LOGFRET, INC.,

Complainant,

v.

Docket No. 18-10

KIRSHA, B.V.,

Leendert Hohannes BERGWERFF a/k/a Hans BERGWERFF,

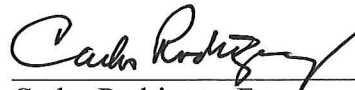
LINDA SIEVAL,

Respondents.

**MOTION TO DISMISS COMPLAINT
FOR LACK OF PERSONAL AND SUBJECT-MATTER JURISDICTION**

Pursuant to Rule 502.69 of the Commission's Rules of Practice and Procedure (46 C.F.R. § 502.69) and Rules 12(b)(1) and 12(b)(2) of the Federal Rules of Civil Procedure, Respondents Kirsha, B.V., Hans Berwerff, and Linda Sieval, move the Federal Maritime Commission to issue an order dismissing the Complaint with prejudice as to all Respondents. As fully described in the Notice of Appearance, Respondents and the undersigned counsel submit this motion through a special appearance solely for the purpose of opposing the Complaint pursuant to Rules 12(b)(1) and 12(b)(2) of the Federal Rules of Civil Procedure.

Dated: January 9, 2019



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